

Amendment No. 1 to SB2026

Watson
Signature of Sponsor

AMEND Senate Bill No. 2026*

House Bill No. 2152

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 44-2-105, is amended by deleting the section and substituting the following:

By rule, the commissioner shall establish procedures governing the payment of indemnities for animals destroyed under the authority of this chapter in the following manner:

(1) State-ordered destruction. When the destruction of one (1) or more animals is ordered solely under the authority of the state and not in conjunction with or at the direction of the federal government, indemnity must be paid in accordance with procedures established by the commissioner. Indemnity under this subdivision (1) is based on the fair market value of the animal at the time of destruction and the availability of state funds appropriated for that purpose. If sufficient funds are not available to pay the full fair market value, then the commissioner may authorize partial reimbursement. Indemnification may be denied or reduced if the owner is found to be in violation of this chapter.

(2) Federal or joint destruction. When the destruction of one (1) or more animals is ordered by federal authorities or undertaken in conjunction with the federal government, the commissioner shall establish procedures for the payment of indemnities in coordination with the appropriate federal agency. Indemnity in such cases must be administered in a manner consistent with applicable federal law, regulations, cooperative agreements, or funding

limitations. The amount and conditions of payment may reflect applicable federal standards and available federal funds.

SECTION 2. This act is not an appropriation of funds, and funds must not be obligated or expended pursuant to this act unless the funds are specifically appropriated by the general appropriations act.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.